



Staff Grievance Policy

Written June 2025 – Review date June 2027

Introduction

Emmanuel Christian School believes that all employees should be treated fairly and with respect. If you are unhappy about the treatment that you have received or about any aspect of your work, you should discuss this with your line manager, who will attempt to resolve the situation on an informal basis. If you feel unable to approach your line manager directly, you should approach the Head Teacher, who will discuss ways of dealing with the matter with you.

This policy applies to all employees of the school.

Where attempts to resolve the matter informally do not work, it may be appropriate for you to raise a formal grievance under this procedure. A formal grievance should be concerned with the way in which you believe you have been treated by the school or managers acting on its behalf, or about any aspect of your work. Complaints that amount to an allegation of misconduct on the part of another employee will be investigated and dealt with under the disciplinary procedure.

Grievances may be concerned with a wide range of issues, including the allocation of work, your working environment or conditions, the opportunities that you have been given for career development or the way in which you have been managed.

Complaints that you may have about any disciplinary action taken against you should be dealt with as an appeal under the disciplinary procedure.

Grievances raised while you are subject to disciplinary proceedings will usually be heard only when the disciplinary process has been completed. Insofar as a grievance has any bearing on the disciplinary proceedings, it can be raised as a relevant issue in the course of those proceedings.

The right to be accompanied

You have the right to be accompanied by a fellow worker at any grievance meeting or subsequent appeal. The choice of companion is a matter for you. Please note that individual workers are not obliged to agree to accompany you. Companions will be given appropriate paid time off to allow them to accompany colleagues at a grievance hearing or appeal hearing.

At any hearing or appeal hearing, your chosen companion will be allowed to address the meeting, respond on your behalf to any view expressed in the hearing, and sum up the case on your behalf. However, both the hearing and appeal hearing are essentially meetings between the school and you, so any questions put directly to you should be dealt with by you and not your companion.

Where the chosen companion is unavailable on the day scheduled for the meeting or appeal, the meeting will be rescheduled, provided that you can propose an alternative time within five working days of the scheduled date.

Accessibility

If any aspect of the grievance procedure causes you difficulty on account of any disability that you may have, or if you need assistance because English is not your first language, you should raise this issue with the school business manager, who will make appropriate arrangements.

Recording of meetings

The employee, or any person acting on his/her behalf, is not normally permitted to record electronically any meeting held by the school as part of the grievance procedure. This is to encourage openness and full participation by all parties during meetings. Any breach of this provision may lead to disciplinary action against the employee, up to and including dismissal.

In certain limited circumstances, the school may permit the meeting to be recorded electronically. For example where the employee is disabled, it may be appropriate as a reasonable adjustment under the Equality Act 2010. Where the school permits the meeting to be recorded electronically, it will take responsibility for making the recording.

Conducting the grievance procedure

The school recognises that a formal grievance procedure can be a stressful and upsetting experience for all parties involved. Everyone involved in the process is entitled to be treated calmly and with respect. The school will not tolerate abusive or insulting behaviour from anyone taking part in or conducting grievance procedures and will treat any such behaviour as misconduct under the disciplinary procedure.

In order to preserve the rules of natural justice for all parties those involved in the grievance procedure must ensure that matters relating to the dispute are not discussed outside the meetings.

Formal grievance procedure - *Making the complaint*

The first stage of the grievance procedure is for you to put your complaint in writing. This written statement will form the basis of the subsequent hearing and any investigations, so it is important that you set out clearly the nature of your grievance and indicate the outcome that you are seeking. If your grievance is unclear, you may be asked to clarify your complaint before any meeting takes place.

Your complaint should be headed "Formal grievance" and sent to your line manager. If your complaint relates to the way in which you believe your line manager is treating you, the complaint may be sent to the Head teacher. If the complaint is with the head teacher then it should be sent to the chair of governors.

Further attempts may be made to resolve the matter informally, depending on the nature of your complaint. However, if you are not satisfied with the outcome, you may insist on the matter proceeding to a full grievance hearing.

Before proceeding to a full grievance hearing, it may be necessary to carry out investigations of any allegations made by you, although the confidentiality of the grievance process will be respected, wherever possible. If any evidence is gathered in the course of these investigations, you will be given a copy long enough in advance of the hearing for you to consider your response. In exceptional circumstances, the evidence given by individuals may have to remain confidential. Where confidentiality is necessary, this will be explained to you and an appropriate summary of the evidence gathered will be given to you.

The grievance hearing

The hearing will be held as soon as is reasonably practicable and, subject to any need to carry out prior investigations, within five working days of the receipt of your written complaint. It will be conducted by your line manager and attended by the school business manager. At the meeting, you will be asked to explain the nature of your complaint and what action you feel should be taken to resolve the matter. Where appropriate, the meeting may be adjourned to allow further investigations to take place.

You should ensure that you attend the meeting at the specified time. If you are unable to attend because of circumstances beyond your control, you should inform your line manager as soon as possible. If you fail to attend without explanation, or if it appears that you have not made sufficient attempts to attend, the hearing may take place in your absence.

While you will be given every opportunity to explain your case fully, you should confine your explanation to matters that are directly relevant to your complaint. Focusing on irrelevant issues or incidents that took place long before the matters in hand is not helpful and can hinder the effective handling of your complaint. The manager conducting the hearing will intervene if he/she thinks that the discussion is straying too far from the key issue. The manager may also intervene to ensure that the meeting can be completed within a reasonable timeframe, depending on the nature and complexity of your complaint.

Following the meeting, you will be informed in writing of the outcome within seven working days and told of any action that the school proposes to take as a result of your complaint. You may discuss this outcome informally with either your manager or the head teacher.

If you are dissatisfied with the outcome, you may make a formal appeal.

Appeal

Your appeal should be made in writing to the manager who conducted the initial grievance hearing. You should clearly state the grounds of your appeal, i.e. the basis on which you say that the result of the grievance was wrong or that the action taken as a result was inappropriate. This should be done within seven working days of the written notification of the outcome of the grievance. An appeal meeting will be arranged to take place within five working days of the submission of your formal appeal, wherever possible.

You should ensure that you attend the meeting at the specified time. If you are unable to attend because of circumstances beyond your control, you should inform your line manager of this as soon as possible. If you fail to attend without explanation, or if it appears that you have not made sufficient attempts to attend, the hearing may take place in your absence.

The appeal hearing will be conducted by the headteacher (unless they were involved in stage 1 in which case the chair of governors), who will consider the grounds that you have put forward and assess whether or not the conclusion reached in the original grievance hearing was appropriate. Following the appeal meeting, you will be informed of the outcome within seven working days, wherever possible. The outcome of this meeting will be final.

Law relating to this document -Leading statutory authority

Employment Rights Act 1996

Employment Relations Act 1999

Acas code of practice on disciplinary and grievance procedures

Discipline and grievances at work: the Acas guide

This policy is designed to take account of the "ACAS code of practice on disciplinary and grievance procedures" and its accompanying guidance.

Review

This policy should be read in conjunction with the following staff policies:

- Staff code of conduct
- Staff Disciplinary policy
- Allegations against staff policy

This policy was written in June 2023 and will be reviewed bi-annually.

Formally agreed through Governors compliance:	
Signed Julian Mercik – Chair of Governors	29/06/25
Signed Andy Harris – Head Teacher	29/06/25
Review Date:	29/06/27